1. Introduction to our Constitution

Let's revise a few things!

In the Civics textbooks of the previous classes, we saw many reasons why rules are necessary in our lives. We follow norms and rules in order that the activities in the family, our school, our village or city are carried out smoothly. There are no rules in a family. However, there are norms about the behavior of members in a family. There are rules in a school regarding admission, uniform and studies. Different competitions also have their own rules. The administration of our village or city is also carried out in accordance with rules. Similarly, the administration of our country is carried out through a system of rules. The rules regarding family, school, village or city are limited in nature. But the rules or provisions about the administration of a country are much wider in scope.

Do you wish to ask the questions that puzzled Sameer and Vandana?

- Where can we find all the rules according to which the administration of the country is carried out?
- Who makes those rules?
- Is it binding on us to follow them?

See whether you find the answers to these questions in the following text.

The Meaning of Constitution

The book in which all the provisions regarding the administration of a the country are mentioned together in a systematic way is called a Constitution. This makes the Constitution a written document of the provisions related to the administration of the country. Government is established by the representatives elected by the people. It is bound to carry out the administration of the country as per the provisions of the Constitution. The rules and provisions in the Constitution are the basic or fundamental law of the land. While making laws, the government is bound to follow the Constitution. If it does not do so, then the Judiciary can declare those laws null and void or unconstitutional.

Provisions in the Constitution

The provisions in the Constitution are about different things, e.g., citizenship, the rights of citizens, the relationship between citizens and the State, subjects of the laws to be made by the governments, elections, restrictions on government, jurisdiction of the State, etc.

Almost all countries have accepted the principle of governance according to a Constitution. Yet the nature of the Constitutions of different countries is different. There are differences of history, social structures, culture, traditions, etc. between the countries. Similarly, their needs and objectives also might be different. Each country tries to create a Constitution that is not only suited to its needs and objectives, but also is in tune with its distinct nature.

Let's find out.

Find out some information about the Constitution of any one country of your choice with the help of the following points :

- Name of the country.
- Year of the making of the Constitution.
- Two features of the Constitution.

Do you know?

The administration of countries like America (USA) and England (UK) is carried out as per their respective Constitutions. But these two Constitutions are different.

The American Constitution came into force in 1789. It is a written Constitution and has only 7 articles. Even after 225 years, the American government follows the same Constitution.

England has a long history of several centuries. The rules of running the country here are found in the form of conventions, norms and traditions. Yet they are followed meticulously. The Magna Carta of 1215 marks the beginning of the development of the English Constitution. Even though there are certain written rules, the English Constitution is considered to be primarily unwritten.

Necessity of a Constitution : There are several advantages of governing a country with the help of rules or provisions included in a Constitution.

- Government has to function within a set of rules. This reduces the possibility of the misuse of the power and authority they have been given.
- A Constitution includes the rights and freedoms of the citizens. Government cannot take away these rights. Therefore, people's rights and freedoms are safeguarded.
- Running a country as per the provisions of the Constitution is the same as establishing the rule of law. Then there is no scope for the misuse of power, or high-handed administration.
- If a country is run as per the Constitution, the faith that the common people have in the government increases. They then become keen on participating in the activities of the government. Democracy is strengthened due to the increased participation of the people.
- Constitution presents some political ideals before the country. The nation is also bound to act in that direction. It creates an atmosphere conducive to attain world peace and security and preservation of human rights.
- Since the constitution also includes the list of citizens' duties, it fixes the responsibility of the citizens as well.

What is administration?

What is included in the administration of a country?

Government has to make laws relating to several subjects, such as defending the boundaries, protecting the people from external aggression, eradication of poverty, creating employment, education and health services, encouragement to commerce and industries, protection of the weaker sections, making policies for the progress of women, children and the tribal people, etc. Government has to bring about desirable changes in the society by implementing laws. In short, governments in modern times have to take decisions related to different issues right from space research to public cleanliness. This is governance or administration.

Having understood the meaning of Constitution and governance, we shall now see how the Indian Constitution was made.

Background to the making of the Constitution : The process of the making of the Indian Constitution started in 1946. The leaders of the freedom movement insisted that Independent India will be governed not by the laws made by the British, but by laws made by Indians themselves. A Committee was established to prepare the Constitution of Independent

India. It came to be known as the Constituent Assembly.

Constituent Assembly : India became independent on August 15, 1947. Before that, the British ruled over India. They had divided India into provinces like Bombay, Bengal and Madras for the convenience of administration. The administration in these provinces was carried out by peoples' representatives. Similarly, the local princes were carrying out the administration in some areas. Such areas were known as princely states and their chiefs were known as princes. The representatives of the provinces and the princely states were included in the Constituent Assembly.

Dr Rajendra Prasad

There were a total of 299 members in the Constituent Assembly. Dr Rajendra Prasad was the President of the Constituent Assembly.

The contribution of Dr Babasaheb Ambedkar :

Dr Babasaheb Ambedkar was the Chairman of the Drafting Committee. He had studied in depth, the Constitutions of different countries of the world. He studied and contemplated day and night to draft our Constitution.

Dr Babasaheb Ambedkar

The draft Constitution prepared by him was presented to the Constituent Assembly. It was discussed Article by Article. Many amendments were suggested by different members. Dr Babasaheb Ambedkar handled the task of presenting the draft, answering the various questions raised on it, making changes in the draft as per the suggestions of the Constituent Assembly and making every provision of the Constitution flawless. Due to his contribution towards the making of the Constitution, Dr Babasaheb Ambedkar is called the 'Architect of the Indian Constitution.'

We are proud of it : Decisions in the Constituent Assembly were made on the basis of debate and discussion. A respect for opposing viewpoints and acceptance of appropriate suggestions was a characteristic of the working of the Constituent Assembly.

- It took 2 years, 11 months and 17 days to complete the writing of the Constitution.
- There were 22 parts, 395 articles and 8 schedules in the original Constitution.

Do you know?

Some of the well-known members of the Constituent Assembly were Dr Rajendra Prasad, Pandit Jawaharlal Nehru, Dr Babasaheb Ambedkar, *Sardar* Vallabhbhai Patel, Maulana Abul Kalam Azad, Sarojini Naidu, J. B. Kripalani, Rajkumari Amrit Kaur, Durgabai Deshmukh, Hansaben Mehta, and others. The noted legal expert, B. N. Rau was appointed as the Constitutional Adviser on legal matters.

The Constituent Assembly enacted the Constitution and adopted it on 26th November 1949. Therefore, 26th November is observed as 'Constitution Day.'

The country began to be governed according to the provisions of the Constitution from 26th January 1950. The Indian Republic came into existence from this day. Therefore, 26th January is celebrated as 'Republic Day.'

Pandit Jawaharlal Nehru

Sardar Vallabhbhai Patel

Maulana Azad

Sarojini Naidu

Do this.

You would like your class to run according to rules, wouldn't you? Which rules would you like to include in your list of rules? Prepare a list of rules for your class.

Do you know?

Dr Babasaheb Ambedkar's contribution was in a wide range of fields like water conservation, foreign policy, national security, journalism, economics, social justice, etc.

Dr Babasaheb Ambedkar presenting the draft of the Indian Constitution to Dr Rajendra Prasad, President of the Constituent Assembly

Exercise

1. Explain the following concepts :

(1) Provisions of the Constitution

(2) Constitution Day

2. Discuss.

(1) A Constituent Assembly was established.

(2) Dr Babasaheb Ambedkar is called the 'Architect of the Indian Constitution'.

(3) What is included in the administration of a country?

3. Choose the right option.

(1) The Constitution of this country is primarily unwritten.

(a) America (b) India

(c) England (d) None of the above

(2) Who was the President of the Constituent Assembly?

(a) Dr Babasaheb Ambedkar

(b) Dr Rajendra Prasad

(c) Durgabai Deshmukh

(d) B. N. Rau

(3) Who among these was not a member of the Constituent Assembly?

(a) Mahatma Gandhi

(b) Maulana Azad

(c) Rajkumari Amrit Kaur

(d) Hansaben Mehta

(4) Who was the Chairman of the Drafting Committee?

(a) Dr Rajendra Prasad

(b) Sardar Vallabhbhai Patel

(c) Dr Babasaheb Ambedkar

(d) J. B. Kripalani

4. Answer the following questions.

(1) On what subjects does the Government have to make laws?

(2) Why do we celebrate 26th January as Republic Day?

(3) What are the advantages of running a country as per the provisions of the Constitution?

Activities

(1) Several committees were established for the effective functioning of the Constituent Assembly. Find out more information about them and discuss the role of different committees.

(2) Prepare a report on how you celebrated Constitution Day in your school.

(3) Make a collection of the photos of the members of the Constituent Assembly.